Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers of the Town Hall on Monday, December 10, 2018 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

3.1 Closed Session Meeting, September 17, 2018

Moved by: A. Khan
Seconded by: L. Bower

That the Minutes of the Closed Session meeting of Council held on September 17, 2018 be adopted.

CARRIED

3.2 Regular Meeting, September 17, 2018

Moved by: L. Bower
Seconded by: S. Lee

That the Minutes of the regular meeting of Council held on September 17, 2018 be adopted.

CARRIED

3.3 Inaugural Meeting, December 3, 2018

Moved by: S. Lee
Seconded by: L. Bower

That the Minutes of the inaugural meeting of Council held on December 3, 2018 be adopted.

CARRIED

4. Delegation and Petitions/Public Hearings

4.1 Ajax Public Library Bookmark Contest Winners

Sarah Dodge, Coordinator of Information Services, Ajax Public Library, noted that October 14-20th was Ontario Public Library Week and 2018 was the eighth year of the Ajax Public Library's Bookmark Contest. S. Dodge introduced the winners of this year's contest and thanked Council for the opportunity to recognize the contest participants. Mayor Collier and Donna Bright, Chief Librarian, congratulated all of the winners and participants.

5. Correspondence

Moved by: L. Bower
Seconded by: A. Khan

That the report dated December 10, 2018 containing Items of Correspondence be adopted.

CARRIED

6. Reports

6.1 Community Affairs & Planning Committee Report

None

6.2 General Government Committee Report

None

6.3 Summary of Advisory Committee Decisions

None

6.4 Departmental Reports

6.4.1 Bank Signing Officers

Moved by: A. Khan
Seconded by: S. Lee

That the bank signing officers for the Town of Ajax be updated as follows:

Elected Officers
Shaun Collier, Mayor
Marilyn Crawford, Regional Councillor
Joanne Dies, Regional Councillor
Sterling Lee, Regional Councillor

Appointed Officials
Sheila Strain, Director of Finance/Treasurer
Sandra Serrao, Manager of Budgets & Accounting Services
Paul Hewitt, Manager of Purchasing
Terry Simkin, Manager of Taxation

CARRIED

6.4.2 Capital Account Closing Report, August 31, 2018

Members of Council asked questions regarding the capital account closing process and federal gas tax funding. Sheila Strain, Director of Finance/Treasurer, explained the capital account closing process and transfer of unused gas tax funding to the 2019 capital budget.

Moved by: M. Crawford
Seconded by: S. Lee

That Council receive the attached listing of Capital Account Closings as of August 31, 2018 for information.

That funding transfers to/from the Reserves / Reserve Funds from the August 31, 2018 Capital Account Closings, in accordance with the Financial Sustainability Plan, be approved as follows:

Reserve / Reserve Fund	Transfers to	Transfers from	Net Transfer
Capital Contingency Reserve		$61,918.87	$61,918.87
Building Maintenance Reserve	($68,563.49)		($68,563.49)
Building Approvals Reserve	($4,763.52)		($4,763.52)
General Infrastructure Reserve	$125,209.09)	$16,617.21	($108,591.88)
2013 DC Reserve Fund		$1,235.88	$1,235.88
2008 DC Reserve Fund		$111.01	$111.01
Strategic Initiatives Reserve	($33,598.28)		($33,598.28)
Vehicle/Equipment Replacement Reserve	($51,555.18)	$29,344.62	($22,210.56)
Development Reserve		$181.35	$181.35
Total Transfers	**($283,689.56)**	**$109,408.94**	**($174,280.62)**

CARRIED

6.4.3 **Contract Award – Supply & Delivery of Pre-Treated Salt**

Moved by: L. Bower
Seconded by: S. Lee

1. That the report on the Contract Award to Cargill Salt, Road Safety a Division of Cargill Limited, in the estimated amount of $111,451.90 (inclusive of all taxes) for Supply and Delivery of Pre-Treated Salt, for a period of one year, be received for information.

2. That Council authorize Staff to renew the Contract for an additional two, one year periods, pending an analysis and satisfactory performance review at the anniversary date of the Contract, in the estimated amount of $222,903.82 (inclusive of all taxes).

CARRIED

6.4.4 **Contract Award – Dispatch System Software/Hardware Maintenance**

Moved by: J. Dies
Seconded by: S. Lee

That the report on the contract award for annual dispatch system software and hardware maintenance to CriSys Limited in the estimated amount of $133,879 (inclusive of all taxes), for a period of one year, be received for information.

That Council authorize staff to renew the contract for an additional two, one year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $277,000 (inclusive of all taxes).

CARRIED

6.4.5 **2018 Emergency Management Program Report**

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the Town of Ajax Emergency Management Program Committee Annual Report be received for information.

CARRIED

6.4.6 **Contract Award ~ Town Hall Finance / LIS Washroom Upgrades**

Moved by: J. Dies
Seconded by: S. Lee

1. That the report on the contract award to Construction Solutions ASI Inc., in the amount of $151,985.00 (inclusive of all taxes) for the Town Hall Finance / LIS Washroom Upgrades, be received for information.

2. That Council approve funding of $60,410.05 to be allocated to Capital Account No. 993911 from Building Maintenance Reserve.

CARRIED

6.4.7 **Contract Award – Corporate Facility Waste Management**

Moved by: R. Tyler Morin
Seconded by: A. Khan

1. That Council award the contract for Corporate Facility Waste Management to Waste Management of Canada Corporation in the estimated amount of $166, 946.94 (inclusive of all taxes), for a period of 1 year.

2. That Council authorized Staff to renew the contract for an additional six one year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $1,112,277.63 (inclusive of all taxes).

CARRIED

6.4.8 **Pre-Budget Approval ~ Facility Energy Audits**

Moved by: S. Lee
Seconded by: J. Dies

That Council provide pre-budget approval in the amount of $65,000.00 for the issuance of the Request for Proposal (RFP) for Facility Energy Audits.

CARRIED

6.4.9 **Final Report on Over-Expenditure – Supply & Delivery – LED Streetlight Fixtures**

Moved by: A. Khan
Seconded by: R. Tyler Morin

1. That the report on the net over-expenditure of $18,231.74 (net of HST rebate) on the Supply & Delivery - LED Streetlights ~ Arterial Roads, Capital Account No. 988911, previously awarded to Unique Lighting & Control Corp, be received for information.

2. That the capital account 988911, Supply & Delivery - LED Streetlights ~ Arterial Roads be closed and remaining funding be used for the continuing LED Streetlight conversions initiative as identified in the 2019 Capital Budget / 2020 to 2023 Long Range Capital Forecast.

CARRIED

6.4.10 **Pre-Budget Approval – Local Road Resurfacing 2019**

Moved by: A. Khan
Seconded by: L. Bower

That Council provide pre-budget approval in the amount of $3,199,800 for the issuance of the tender documents for the Local Road Resurfacing 2019 Contract.

CARRIED

6.4.11 **Pre-Budget Approval of Storm Sewer Headwall Repair**

Moved by: R. Tyler Morin
Seconded by: S. Lee

That Council provide pre-budget approval in the amount of $330,000 for the issuance of the Request for Single/Sole Source (RFS) for the Storm Sewer Headwall Repair.

CARRIED

6.4.12 **Various Appointments and Nominations to Boards and Committees**

Members of Council discussed the proposed appointments and nominations to various boards and committees.

Main Motion

That Council approve the following appointments:

Name	Board/Committee	Term of Appointment
Shaun Collier	Budget Chair	2019 Budget Meetings
Rob Tyler Morin	Budget Chair	2020 Budget Meetings
Ashmeed Khan	Budget Chair	2021 Budget Meetings
Lisa Bower	Budget Chair	2022 Budget Meetings
Shaun Collier	Emergency Management Program Committee	2018-2022 Council Term
Ashmeed Khan	Ajax Accessibility Advisory Committee	2019-2020
Lisa Bower	Ajax Accessibility Advisory Committee	2021-2022
Lisa Bower	Ajax Heritage Advisory Committee	2019-2020
Marilyn Crawford	Ajax Heritage Advisory Committee	2021-2022
Rob Tyler Morin	Temporary Alternate to Durham Regional Council	2018-2022 Council Term
Rob Tyler Morin	Pickering Village BIA Board	2018-2022 Council Term
Ashmeed Khan	Pickering Village BIA Board	2018-2022 Council Term
Lisa Bower	Downtown BIA Board	2018-2022 Council Term
Sterling Lee	Ajax Public Library Board	2018-2022 Council Term
William Houston	Ajax Public Library Board	2018-2022 Council Term
Doug Miller	Ajax Public Library Board	2018-2022 Council Term
Aisha Francis	Ajax Public Library Board	2018-2022 Council Term
Sandy Taylor	Ajax Public Library Board	2018-2022 Council Term
Deborah McDougall Jones	Ajax Public Library Board	2018-2022 Council Term
Dani Goraichy	Ajax Public Library Board	2018-2022 Council Term
Noel Green	Ajax Public Library Board	2018-2022 Council Term
Matthew Tapscott	Ajax Public Library Board	2018-2022 Council Term

That Council approve the following nominations:

Name	Board/Committee	Term of Appointment
Carolyn Molinari	Durham Region Land Division Committee	2018-2022 Council term
Keith Haines	Durham Active Transportation Committee	2018-2022 Council term
Joanne Dies	Toronto and Region Conservation Authority	2018-2022 Council term
Sterling Lee	Central Lake Ontario Conservation Authority	2018-2022 Council term
Marilyn Crawford	Ajax Municipal Housing Corporation (Mayor's Designate)	2018-2022 Council term[1]
Rob Tyler Morin	Ajax Municipal Housing Corporation (Council Representative)	2018-2022 Council term[2]

Shaun Collier	Veridian Corporation Board (Mayor)	Until conclusion of merger, or until successors appointed
Joanne Dies	Veridian Corporation Board (Elected Representative)	Until conclusion of merger, or until successors appointed
James MacPherson	Veridian Corporation Board (Community Representative)	Until conclusion of merger, or until successors appointed
David McGregor	Veridian Connections Board (Community Representative)	Until conclusion of merger, or until successors appointed

[1] Or until Town of Ajax is no longer involved in the governance of AMHC, expected Q1 2019
[2] Ibid

AMENDMENT

Moved by: S. Lee
Seconded by: R. Tyler Morin

1. That the appointment of Ashmeed Khan to the Pickering Village Business Improvement Area Board for the 2018-2022 term of Council be removed;

2. That the appointment of Marilyn Crawford to the Heritage Advisory Committee for the years 2021-2022 be removed; and

3. That the appointment of Ashmeed Khan to the Heritage Advisory Committee for the years 2021-2022 be added.

CARRIED

Main Motion as Amended

Moved by: M. Crawford
Seconded by: S. Lee

That Council approve the following appointments:

Name	Board/Committee	Term of Appointment
Shaun Collier	Budget Chair	2019 Budget Meetings
Rob Tyler Morin	Budget Chair	2020 Budget Meetings
Ashmeed Khan	Budget Chair	2021 Budget Meetings
Lisa Bower	Budget Chair	2022 Budget Meetings
Shaun Collier	Emergency Management Program Committee	2018-2022 Council Term
Ashmeed Khan	Ajax Accessibility Advisory Committee	2019-2020
Lisa Bower	Ajax Accessibility Advisory Committee	2021-2022
Lisa Bower	Ajax Heritage Advisory Committee	2019-2020
Ashmeed Khan	Ajax Heritage Advisory Committee	2021-2022
Rob Tyler Morin	Temporary Alternate to Durham Regional Council	2018-2022 Council Term
Rob Tyler Morin	Pickering Village BIA Board	2018-2022 Council Term
Lisa Bower	Downtown BIA Board	2018-2022 Council Term
Sterling Lee	Ajax Public Library Board	2018-2022 Council Term
William Houston	Ajax Public Library Board	2018-2022 Council Term
Doug Miller	Ajax Public Library Board	2018-2022 Council Term
Aisha Francis	Ajax Public Library Board	2018-2022 Council Term
Sandy Taylor	Ajax Public Library Board	2018-2022 Council Term
Deborah McDougall Jones	Ajax Public Library Board	2018-2022 Council Term
Dani Goraichy	Ajax Public Library Board	2018-2022 Council Term
Noel Green	Ajax Public Library Board	2018-2022 Council Term
Matthew Tapscott	Ajax Public Library Board	2018-2022 Council Term

That Council approve the following nominations:

Name	Board/Committee	Term of Appointment
Carolyn Molinari	Durham Region Land Division Committee	2018-2022 Council term
Keith Haines	Durham Active Transportation Committee	2018-2022 Council term
Joanne Dies	Toronto and Region Conservation Authority	2018-2022 Council term
Sterling Lee	Central Lake Ontario Conservation Authority	2018-2022 Council term
Marilyn Crawford	Ajax Municipal Housing Corporation (Mayor's Designate)	2018-2022 Council term[1]
Rob Tyler Morin	Ajax Municipal Housing Corporation (Council Representative)	2018-2022 Council term[2]
Shaun Collier	Veridian Corporation Board (Mayor)	Until conclusion of merger, or until successors appointed
Joanne Dies	Veridian Corporation Board (Elected Representative)	Until conclusion of merger, or until successors appointed
James MacPherson	Veridian Corporation Board (Community Representative)	Until conclusion of merger, or until successors appointed
David McGregor	Veridian Connections Board (Community Representative)	Until conclusion of merger, or until successors appointed

[1] Or until Town of Ajax is no longer involved in the governance of AMHC, expected Q1 2019
[2] Ibid

CARRIED

6.4.13 **Pre-Budget Approval – Remote Connection Replacement**

Moved by: R. Tyler Morin
Seconded by: A. Khan

That Council provide pre-budget approval in the amount of $15,000 for the replacement of the current remote connection application used by IT Services.

CARRIED

7. Regional Councillors' Reports

None

8. Business Arising from Notice of Motion

Mayor Collier vacated the Chair in order to address two items of business arising from notice of motion. Regional Councillor Crawford assumed the chair.

8.1 Boulevard Encroachment / Driveway Widening

Mayor Collier reviewed the contents of his motion and discussed challenges with on-street parking, driveway widenings and boulevard encroachments in Ajax. Members of Council inquired about the impact of suspending current enforcement activities. Nicole Cooper, Director of Legislative and Information Services / Town Clerk, responded to questions from members of Council.

Moved by: S. Collier
Seconded by: R. Tyler Morin

1. That staff be directed to undertake a comprehensive review of the following, reporting back to Council or the appropriate standing committee with recommendations no later than April 2019:

   a. The Town's Road Occupancy/Road Closure By-law, as it relates to the ability of residents to hardscape or modify town boulevards abutting residential properties, for the purposes of landscape design and/or additional parking:

   b. The Town's Zoning By-law, as it relates to the definition of 'drive-ways', permitted drive-way widths, and generally the ability of homeowners to expand drive-ways or walkways within their own property lines;

2. And that By-law Enforcement staff be directed to suspend all enforcement activities on these matters, until such a time that the review is complete, and that findings and recommendations have been presented to and decided upon by Council

3. And that Planning staff be directed to advise all applicants for apron widening permits and minor variances regarding drive-ways that the rules are currently under review, and that they may wish to await the outcome of such review before submitting an application.

CARRIED

8.2 **Appointment of Deputy Mayors**

Mayor Collier reviewed his motion to appoint deputy mayors for the 2018-2022 term of Council.

Moved by: S. Collier
Seconded by: A. Khan

WHEREAS the Municipal Act, 2001 S. 242 allows that a municipality may, by by-law or resolution, appoint a member of the council to act in the place of the head of council or other member of council designated to preside at meetings in the municipality's procedure by-law when the head of council or designated member is absent or refuses to act or the office is vacant, and while so acting such member has all the powers and duties of the head of council or designated member, as the case may be, with respect to the role of presiding at meetings;

AND WHEREAS the Town's Procedure By-law No. 67-2017 provides that a member of council shall be appointed to act from time to time in the place of the Mayor when the Mayor is absent from the municipality or absent through illness, and while so acting, such Member has and may exercise all the rights, powers, and authority of the Mayor;

NOW THEREFORE BE IT RESOLVED THAT the role of Deputy Mayor in Ajax, for the 2018-2022 Term of Council, shall be assigned according to the following schedule:

December 2018 to December 2019 – Regional Councillor Marilyn Crawford
January 2020 to December 2020 – Regional Councillor Joanne Dies
January 2021 to December 2021 – Regional Councillor Sterling Lee
January 2022 to November 14, 2022 – Regional Councillor Marilyn Crawford

AND THAT, in the event the assigned Deputy Mayor is unable to act, the Mayor shall assign another Ajax Regional Councillor to serve in the capacity of Deputy Mayor until such a time that the assigned Regional Councillor for that time period is able to resume the role.

CARRIED

9. By-laws

Moved by: R. Tyler Morin
Seconded by: A. Khan

That By-law number 72-2018 be read a first, second and third time and passed.

CARRIED

10. Notice of Motion

None

11. Question Period

Chris Baker, Ajax resident, inquired about competitive bidding for salt and increases in costs over the previous year in relation to Departmental Report 6.4.3. S. Strain responded to Mr. Baker and reviewed the regional competitive purchasing process for salt. Mr. Baker sought further information on Departmental Report 6.4.7. Catherine Bridgeman, Acting Director of Operations and Environmental Services, responded to Mr. Baker.

Ceciley White, Ajax resident, inquired about the process of selecting the cycle of deputy mayors in Motion 8.2. Mayor Collier responded to Ms. White's question.

12. New Business - Notices & Announcements

None

13. Confirming By-Law

Moved by: A. Khan
Seconded by: L. Bower

That By-law number 73-2018 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting held on December 10, 2018 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the December 10, 2018 meeting of the Council of the Town of Ajax be adjourned. (7:35 p.m.)

CARRIED

Mayor

D-Clerk